TRIAGE

SPECIAL SITUATIONS · CONTROL ANALYSIS · 22 OCT 2026

Control bottleneck: who decides, and what a seat costs

Hughes 26-90739 voting math, paths to control and five capital playbooks; Fresno CMBS, Loparex, BayWa and Branicks chokepoints; CMBS directing holders.

As of	Facts verified	Directing holders	Next date
22 Oct 2026	25/25	50/102	1 Dec 2026

01 The answer in one page

Hughes (26-90739) has one chokepoint, and it is already owned. The Noteholder Group's disclosed positions (more than 61.6% of the secured notes, more than 84.37% of the unsecured notes) give it, simultaneously:

- the **blocking and carrying vote in both note classes** under §1126(c)[CB01][CB02];
- the **cash-collateral trigger**: the "Required Prepetition Secured Parties" are the majority of secured notes, and EchoStar XXIV is named without a vote[CB05]. The order runs only through **23 Oct 2026**[CB06], so the Group re-prices the Debtors' liquidity every few weeks;
- a **veto on any new EchoStar/Debtor transaction** and on settling estate claims outside mediation, under the 20 Sep stipulated order[CB11][CB12].

The float the Group does not own is too small to block either class. Non-Group third parties hold at most **$165.3m of the secured notes** and **$117.2m of the unsecured notes**. Blocking needs more than $209.1m and $250.0m respectively. **An outsider cannot buy a blocking position in the market. It can only buy one from Group members, or join the Group.**

The counter-chokepoint belongs to **EchoStar (the parent)**. It owns the J3 satellite through non-debtor EchoStar XXIV, holds $172.7m of secured claims, and controls the Debtors' board until exclusivity ends. Its claims are the target of the examiner's equitable-subordination brief[CB08][CB10]. As of 16 Oct, though, the order recites that **no examiner had yet been appointed**[CB07]. The three dates that decide control are **23 Oct** (cash collateral), **1 Dec** (exclusivity hearing) and the **lien-challenge deadline**.

What a billionaire would do (judgement): not fight the Group. Instead, (1) buy into it through a member's position, or (2) take the one seat it does not hold: **litigation-trust funder** or **bidder for the post-exit equity / sale process**. In the side situations the same logic gives: - **Fresno**: about $11.2m of CMBS class F controls the directing seat on a $325m loan. - **Branicks**: more than 50% of a €400m bond can waive the broken shareholder condition. - **BayWa**: more than 25% of the votes cast blocks the hybrid. - **Loparex**: the lenders who led the out-of-court recapitalisation already own the outcome.

02 Hughes: voting math, class by class

The rule is §1126(c): a class accepts if creditors holding **at least two-thirds in amount and more than half in number of the claims that actually vote** accept. Votes designated under §1126(e) are excluded (law.cornell.edu/uscode/text/11/1126). A plan also needs one impaired accepting class, **counted without insider votes**[CB14].

Prices are the issuer's reported fair values at 30 Jun 2026: **85.6** secured, **58.0** unsecured[CB03][CB04]. These are Level-2 estimates, not trades. Group holdings are the disclosed minimums.

CLASS	AMOUNT VOTING ($M, ASSUMES 100% TURNOUT)	BLOCK THRESHOLD (>1/3)	COST OF BLOCK AT FV	GROUP HOLDING (MIN)	GROUP BLOCKS?	GROUP CARRIES ALONE?	MAX FLOAT OUTSIDE GROUP/INSIDER	OUTSIDE FLOAT CAN BLOCK?	LIKELY BLOCKER
Secured Notes, all holders vote (EchoStar not designated)	750.0	$250.0m	$213.9m	$462.0m	yes	no	$165.3m	no	Noteholder Group
Secured Notes, EchoStar votes designated/separately classed	627.3	$209.1m	$178.9m	$462.0m	yes	yes	$165.3m	no	Noteholder Group
6.625% Senior Notes (unsecured)	750.0	$250.0m	$145.0m	$632.8m	yes	yes	$117.2m	no	Noteholder Group
EchoStar intercompany (J3 $50m secured + $1m unsecured)	51.0	$17.0m	n/a (single insider holder)	$0.0m	no	no	$0.0m	no	EchoStar (insider)
Trade / general unsecured	not disclosed in documents retrieved	–	–	–	–	–	–	–	Gap: schedules not retrieved. The Group term sheet keeps trade claims unimpaired up to a cap, and an unimpaired class is deemed to accept (§1126(f)), so it **does not vote**

How to read it. - **Secured class.** EchoStar's $122.7m is 16.4% of the class and cannot block alone in amount. If EchoStar is designated, as DISH was in DBSD (below), the class shrinks to $627.3m. The Group then holds 73.71% and carries the class by itself[CB02]. **But if EchoStar is *not* designated, the Group (≥$462.0m) falls short of the $500m needed to carry the full class alone. EchoStar ($122.7m) plus at least about $127.3m of the ≤$165.3m non-Group float (more than $250m in total) could block. That makes designation of EchoStar's vote the real swing in the secured class, and makes the remaining non-Group secured holders the kingmakers (judgement).** - **Numerosity is the only soft spot.** "More than half in number" counts holders, not dollars. The member count on Exhibit A of ECF 154 was **not retrievable** (not on RECAP; the Epiq site needs JavaScript)[CB13]. A plan sponsor facing a Group of fewer than about 10 funds could in theory be out-voted by number if many small holders voted against it. Judgement: this is unlikely for institutional 144A notes, where holders vote through DTC participants and turnout among small holders is low. - **Turnout lowers every threshold.** If only 70% of the secured class votes, blocking needs just $175.0m. The Group's position only gets more dominant. - **EchoStar intercompany class.** EchoStar can make this class reject (cost: nothing, it owns the claim). But its acceptance cannot satisfy §1129(a)(10)[CB14], and a rejecting class can be crammed down if the plan is fair and equitable. Its real leverage is economic, not legal: **J3**. The satellite sits outside the estate. The Group plan rejects the lease unless EchoStar XXIV modifies it, so Hughes needs replacement capacity or a renegotiated lease.

03 Paths to control (likelihoods are judgement, not forecasts)

PATH	WHO BENEFITS	LIKELIHOOD (JUDGEMENT)	COST	TIMELINE	PRECEDENT / AUTHORITY
Exclusivity terminated at the 1 Dec hearing	Noteholder Group	45–60%	Legal fees only; the Group already filed a term sheet (Dkt 320)	Ruling at or after 1 Dec 2026	§1121(d) "for cause"[CB18]; the stay of exclusivity litigation was negotiated, not imposed[CB11]
Competing Group plan confirmed (debt-for-equity + litigation trust)	Group	35–50% conditional on termination	Bridge DIP + exit ABL (sizes not disclosed)	Group milestones: file in 20 days, disclosure statement in 40 days, confirmation 30 days after that, so about Q1–Q2 2027	Group controls both note classes (section 2); cramdown of EchoStar classes
Credit bid of secured collateral	Secured holders (Group-directed)	15–25%	Up to ~$800m of All-Asset Secured Claims can be bid; cash only for senior costs	3–6 months + FCC	§363(k)[CB16]. The $50m J3 advance shares the collateral[CB09], so who credit-bids first is itself a fight
Buying EchoStar's intercompany claims	Third party	<10%	~$172.7m face; price unknowable	–	DBSD: buying debt for strategic control risks designation
Equitable subordination / recharacterization of the $172.7m	Third-party secured, then unsecured	30–50% (any portion subordinated)	Litigation cost; examiner budget	Examiner interim reports every 45 days once appointed	§510(c)[CB15]; examiner scope[CB10]; LightSquared (affiliate claim subordinated **to the extent of harm**, not disallowed)
Examiner findings move the negotiation	Committee + Group	High influence, low direct control	Estate-funded	Examiner not yet appointed as of 16 Oct[CB07]	Order defining scope, Dkt 339
DIP roll-up	DIP lender (a Group member)	30–45% if exclusivity ends	DIP size undisclosed; illustrative $100–200m	With plan filing	Serta (5th Cir. 2024): a non-pro-rata uptier was not an "open market purchase", and the indemnity was struck. Incora/Wesco: liens restored where the 2/3 vote was lacking. Mitel: an NY uptier was upheld. **Any in-court roll-up is court-supervised, so these cases set the fairness bar, not the mechanics**
363 sale of spectrum / satellite assets	Highest bidder, often the secured credit bid	20–35%	Market price (illustrative EV $350–900m, Hughes note A2)	6–12 months; FCC licence transfer approval needed	Group plan builds in a one-year post-effective sale process (Dkt 320). DISH DBS (sister subsidiary) emerged on 1 Oct 2026 via its own Chapter 11

Precedents (primary). - **DBSD** (2d Cir. 2011): DISH's vote was designated after it bought the first-lien class to obtain strategic assets. law.justia.com/cases/federal/a...-f3d-79.html - **LightSquared** (Bankr. S.D.N.Y., 10 Jun 2014): SPSO, the controlling shareholder's vehicle, bought about $844m of debt. The claim was not disallowed, but was subordinated to the extent of injury. nysb.uscourts.gov/sites/defaul..._opinion.pdf - **Serta** (5th Cir., 31 Dec 2024). ca5.uscourts.gov/opinions/pub/...0181-CV0.pdf - **Mitel** (App. Div. 1st Dept, 31 Dec 2024). law.justia.com/cases/new-york/...4-00169.html - **Incora/Wesco** (S.D. Tex.). caselaw.findlaw.com/court/us-b...6894389.html - **DISH DBS emergence** (8-K, 1 Oct 2026). sec.gov/Archives/edgar/data/14...61001×8k.htm

The DBSD and LightSquared lessons point both ways in this case. EchoStar's group has itself been on the buying side of these tactics. That raises the probability (judgement) that its own $122.7m note purchase is designated or subordinated.

04 Five billionaire playbooks

Every number in this section is an **assumption** unless it carries a CB reference. Returns are gross, before fees and financing, and illustrative.

(A) BLOCKING POSITION IN THE SECURED NOTES

CAPITAL NEEDED	RETURN RANGE	RISKS AND LEGAL CONSTRAINTS
Needs >$209.1m face (EchoStar designated) ≈ **$178.9m** at 85.6. The available non-Group float is at most $165.3m, so the block **must include bonds bought from Group members**	Buy at 85.6. Low 41 / base 84 / high 100 cents (Hughes note model) gives **−52% / −2% / +17%**. The block itself pays only if it extracts consideration, and that is exactly what §1126(e) punishes	Bad-faith designation (DBSD). Rule 2019 disclosure if acting as a group{f('CB17')}. MNPI if the bonds are bought from restricted Group members (cleansing needed)

(B) FUND THE LITIGATION TRUST

CAPITAL NEEDED	RETURN RANGE	RISKS AND LEGAL CONSTRAINTS
$25–50m commitment (assumption) for 20–35% of net proceeds (assumption, market-typical)	Claims in examiner scope: $1.029bn dividends + ~$196m tax payments, **alleged**{f('CB08')}. Net trust proceeds low 0 / base 150 / high 400 ($m, Hughes note A3) → funder at 30% earns **0 / $45m / $120m** on $35m, i.e. **−100% / 1.3x / 3.4x** over 2–4 years	Funding terms need court and plan approval. Settlement of EchoStar claims outside mediation is frozen{f('CB11')}. LightSquared shows partial, not total, subordination

(C) BRIDGE DIP

CAPITAL NEEDED	RETURN RANGE	RISKS AND LEGAL CONSTRAINTS
$100–200m (assumption; Group alleges ~$91m of deferred J3 payments and fees and no unencumbered cash, Dkt 534)	Coupon 12–15% + 2–4% fees (assumption) → **14–19% annualised**, super-priority. Roll-up optionality only if the lender also holds secured notes	Priming requires adequate protection or consent of the Required Prepetition Secured Parties, i.e. the Group{f('CB05')}. **A third-party DIP is not executable without the Group.** Serta/Incora fairness scrutiny of any roll-up

(D) BUY TRADE / ADMIN CLAIMS

CAPITAL NEEDED	RETURN RANGE	RISKS AND LEGAL CONSTRAINTS
Trade pool size **unknown** (gap). Admin claims are mostly professionals' fees and EchoStar XXIV's deferred J3 rent, which is not tradable at scale	If trade stays unimpaired up to the Group's cap: buy at 60–85 (assumption), receive par → **+18% to +67%**. Above the cap, recovery falls to the unsecured waterfall	Near-zero control value: an unimpaired class does not vote. Bankruptcy Rule 3001(e) transfer notices; claim-objection risk travels with the claim

(E) BID FOR THE ASSETS

CAPITAL NEEDED	RETURN RANGE	RISKS AND LEGAL CONSTRAINTS
Enterprise value **$350–900m** (Hughes note A2). A cash bid must beat a credit bid of up to ~$800m secured face{f('CB16')}	Equity upside only if bought below base EV ($600m). Subscriber base −21.7% YoY (Hughes note), so the case is distressed-operating, not a spectrum arbitrage	FCC licence-transfer approval. J3 is owned by **non-debtor** EchoStar XXIV, so a buyer must also deal with the parent. §363(k) credit-bid priority

Legal constraints common to all five. - **MNPI.** Group members sign NDAs and trade behind walls; an outsider buying from them must get them "cleansed". Trading on Debtor or EchoStar MNPI violates Rule 10b-5. - **Rule 2019.** Anyone acting in concert must disclose every "disclosable economic interest", including derivatives[CB17]. - **§1126(e).** Votes bought to obtain a non-creditor advantage can be designated (DBSD). - **Insider status.** Anyone affiliated with EchoStar cannot supply the impaired accepting class[CB14].

Ranking (judgement). Highest risk-adjusted control: **(b) the litigation trust**, because it is the one valuable seat the Group does not already own. Next is **(e)**, but only as a partner of the Group's sale process. **(c)** works only through a Group member. **(a)** is effectively unavailable. **(d)** is yield, not control.

05 Fresno Fashion Fair (CMBS): the B-piece holds the pen

- **The loan.** Fresno Fashion Fair is a $325m whole loan; the $60m A-1-A note sits in JPMDB 2016-C4 at 3.587% and matures 1 Nov 2026[CB19]. It moved to special servicing on 29 Jul 2026 for imminent monetary default. Rialto, the special servicer, is finalising a Pre-Negotiation Letter with the sponsor, Macerich[CB20].
- **Who controls.**
- The trust is the controlling noteholder for the whole loan.
- The **Directing Certificateholder is Cytium Investment Management**[CB21]. At issuance it was BlackRock Realty Advisors, which bought Classes E, F and NR and appointed the special servicer[CB22].
- The controlling class is **F: $11.244m face, now receiving zero interest**.
- **The chokepoint math.** About **$11.2m of face directs workout, extension or foreclosure consent on a $325m loan: a 29x lever**. The holder can also replace the special servicer, subject to appraisal-reduction control-shift tests. Judgement: if appraisal reductions erase class F, control shifts up to class E ($22.5m), so a buyer must model the appraisal.
- **Billionaire move (assumption).** Buy class F + E (about $34m face) at deep discount from the current holder, then drive a negotiated extension with Macerich. The alternative is to buy the companion notes held in other trusts, which carry no control.

06 Loparex: control already exercised out of court

- **The lender's position.** OBDC holds second-lien positions of $112m and $21m, marked 61 → 5. Its first-lien pieces are small: $4.12m at 21.5 and $0.78m at 102.6 (30 Jun 2026).
- **The recap.** Loparex announced a recapitalisation on 8 Sep 2026, **led by Monarch Alternative Capital and Atlantic Park**, expected to close in Q4 2026. loparex.com/loparex-announces-...e-of-growth/
- **Second-lien and first-lien treatment.** Secondary press reports the second lien goes to zero and about half of the first lien converts to equity. **This is not confirmed by a primary source.**
- **No WHOA filing was found.** The chokepoint was the majority-lender consent under the first-lien credit agreement. It has been used, and the BDC 2L holders were not on the deciding side.
- **Lesson.** In private credit, control sits with whoever holds the required-lender percentage of the senior tranche, not with the largest BDC mark.

07 BayWa (Kronos EKS €100m hybrid): the 25% blocker

- **The rule.** Under §5(4) SchVG, material amendments need **75% of votes cast**. The first vote needs a quorum of 50% of outstanding notes (§15(3)); the second meeting needs 25%. gesetze-im-internet.de/schvg/__5.html gesetze-im-internet.de/schvg/__15.html
- **The October vote.** The 12–14 Oct vote was **quorate, yet neither the issuer's resolutions nor the countermotions passed**[CB23].
- **Minimum blocking stake.** At minimum participation (50 of €100m), more than **€12.5m** blocks. At full participation, more than €25m.
- **Second meeting.** At its 25% quorum, as little as **€6.25m** can block.
- **Judgement.** A €6–15m holder, buying hybrids at distressed prices, has a veto on a €100m write-down. That is the cheapest control seat in this set.

08 Branicks: the 50% waiver and the shareholder veto

- **What creditors approved.** Creditors approved the restructuring of the €400m 2.25% bond (M05: 99% of votes cast).
- **What shareholders blocked.** The 9 Oct EGM **did not approve** the consultancy agreements (agenda item 4), so Implementation Condition 2 failed[CB24].

- **The way around it.** Holders of **more than 50% of the outstanding principal (>€200m)** can instruct MR Treuhand to waive any condition except 6 and 7[CB25].
- **Where the chokepoint sits.** It is a **€200m+ coalition of noteholders**, not the shareholders.
- **Judgement.** The anchor holders who negotiated the deal (not named in the primary text) already sit close to that line. An outsider with 10–15% can bargain for consideration but cannot stop a waiver.

09 CMBS directing holders found in the filings

Source: the latest 10-D Exhibit 99.1 for each trust, parsed by cmbs_control.py. **50 of 102 trusts named a directing holder or controlling class representative.** Computershare-format BMO and several other trusts print no name in the 10-D. Names are entities as printed; "Pacific Design Center" (Benchmark 2023-B38) looks like a loan label, not a holder, and is flagged.

TRUST	LABEL	DIRECTING HOLDER / CCR	SPECIAL SERVICER	CONTROLLING CLASS	CLASS BALANCE ($M)	SOURCE
JPMDB Commercial Mortgage Securities Trust 2016-C4	Directing Certificateholder	Cytium Investment Management	Rialto Capital Advisors, LLC	F	11.2	https://www.sec.gov/Archives/edgar/data/1687202/000188852426017398/jpc16c04_ex991-202609.htm
Benchmark 2025-V17 Mortgage Trust	Directing Holder	400 Capital Management LLC	Torchlight Loan Services, LLC	J-RR	29.1	https://www.sec.gov/Archives/edgar/data/2063065/000188852426018265/bmk25v17_ex991-202609.htm
DBGS 2018-C1 Mortgage Trust	Directing Holder	RREF III-D AIV RR, LLC	Rialto Capital Advisors, LLC		–	https://www.sec.gov/Archives/edgar/data/1752363/000188852426018213/dma18001_ex991-202609.htm
BMO 2025-5C10 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR L, LLC	Rialto Capital Advisors, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2057363/000162829726000885/ex99_1.htm
BENCHMARK 2021-B27 MORTGAGE TRUST	Controlling Class Representative	KKR Real Estate Credit Opportunity Partners II L.P	Midland Loan Services, a Division of PNC Bank N.A.		–	https://www.sec.gov/Archives/edgar/data/1862080/000162829726000795/ex99_1.htm
Benchmark 2018-B7 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital, L.P	LNR Partners, LLC	H-RR	11.3	https://www.sec.gov/Archives/edgar/data/1757018/000188852426018251/dma18b07_ex991-202609.htm
BMO 2025-C12 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR L, LLC	Rialto Capital Advisors, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2061839/000162829726000887/ex99_1.htm
Benchmark 2019-B10 Mortgage Trust	Directing Holder	ES Ventures Holding, Inc	Argentic Services Company LP	H	35.6	https://www.sec.gov/Archives/edgar/data/1766367/000188852426018209/dma19b10_ex991-202609.htm
CD 2018-CD7 Mortgage Trust	Directing Holder	RREF III-D AIV RR H, LLC	Rialto Capital Advisors, LLC	H-RR	30.5	https://www.sec.gov/Archives/edgar/data/1746406/000188852426018207/cdd18cd7_ex991-202609.htm
CITIGROUP COMMERCIAL MORTGAGE TRUST 2020-GC46	Controlling Class Representative	Eightfold Real Estate Capital, L.P	CWCapital	J-RR	–	https://www.sec.gov/Archives/edgar/data/1800294/000162829726000789/ex99_1.htm

TRUST	LABEL	DIRECTING HOLDER / CCR	SPECIAL SERVICER	CONTROLLING CLASS	CLASS BALANCE ($M)	SOURCE
BENCHMARK 2019-B9 MORTGAGE TRUST	Controlling Class Representative	Prime Finance Long Duration (B-Piece) II, L.P	LNR Partners, LLC	H	–	https://www.sec.gov/Archives/edgar/data/1764759/000162829726000781/ex99_1.htm
CD 2017-CD5 MORTGAGE TRUST	Controlling Class Representative	RREF III-D AIV RR, LLC	Rialto Capital Advisors, LLC	G	–	https://www.sec.gov/Archives/edgar/data/1710360/000162829726000779/ex99_1.htm
CITIGROUP COMMERCIAL MORTGAGE TRUST 2017-P8	Controlling Class Representative	Prime Finance CMBS B-Piece Holdco X, L.P	KeyBank National Association	G	–	https://www.sec.gov/Archives/edgar/data/1715824/000162829726000775/ex99_1.htm
Benchmark 2019-B13 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital, L.P		H-RR	24.5	https://www.sec.gov/Archives/edgar/data/1785881/000188852426018287/dma19b13_ex991-202609.htm
Benchmark 2020-B16 Mortgage Trust	Directing Holder	ECMBS LLC	Argentic Services Company LP	H	26.7	https://www.sec.gov/Archives/edgar/data/1797288/000188852426018307/dma20b16_ex991-202609.htm
CD 2019-CD8 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital, L.P		H-RR	16.7	https://www.sec.gov/Archives/edgar/data/1782003/000188852426018277/dma19cd8_ex991-202609.htm
BBCMS Mortgage Trust 2024-C26	Directing Certificateholder	RREF V-D AIV RR H, LLC	Rialto Capital Advisors, LLC	H-RR	36.5	https://www.sec.gov/Archives/edgar/data/2020017/000188852426018177/bcr24c26_ex991-202609.htm
CFCRE 2017-C8 Mortgage Trust	Controlling Class Representative	RREF III-D CF 2017-C8, LLC	Rialto Capital Advisors, LLC		–	https://www.sec.gov/Archives/edgar/data/1703075/000188852426018097/ccr17c08_ex991-202609.htm
Benchmark 2021-B30 Mortgage Trust	Directing Holder	LMCG Investments, LLC	Torchlight Loan Services, LLC	G	9.0	https://www.sec.gov/Archives/edgar/data/1885855/000188852426018227/bmk21b30_ex991-202609.htm
BENCHMARK 2021-B23 MORTGAGE TRUST	Controlling Class Representative	LD II Holdco XV, LLC	CWCapital		–	https://www.sec.gov/Archives/edgar/data/1840644/000162829726000793/ex99_1.htm
BBCMS Mortgage Trust 2021-C12	Directing Certificateholder	LD III Sub III, LLC	LNR Partners, Inc.	H-RR	10.4	https://www.sec.gov/Archives/edgar/data/1891818/000188852426017590/bcr21c12_ex991-202609.htm
CITIGROUP COMMERCIAL MORTGAGE TRUST 2017-B1	Controlling Class Representative	Investin Pro RED Holdings, LLC	LNR Partners, LLC	H	–	https://www.sec.gov/Archives/edgar/data/1713393/000162829726000773/ex99_1.htm
Benchmark 2021-B26 Mortgage Trust	Directing Holder	ES Ventures Holding, Inc	Argentic Services Company LP	J	23.4	https://www.sec.gov/Archives/edgar/data/1858289/000188852426018231/dma21b26_ex991-202609.htm
BENCHMARK 2020-B19 MORTGAGE TRUST	Controlling Class Representative	RREF IV Debt AIV, L.P	Fees. Reports Available at sf.citidirect.com v. 21.09.28 Page		–	https://www.sec.gov/Archives/edgar/data/1821946/000162829726000791/ex99_1.htm

TRUST	LABEL	DIRECTING HOLDER / CCR	SPECIAL SERVICER	CONTROLLING CLASS	CLASS BALANCE ($M)	SOURCE
BENCHMARK 2021-B31 MORTGAGE TRUST	Controlling Class Representative	RREF IV Debt AIV, LP	Rialto Capital Advisors, LLC	H	–	https://www.sec.gov/Archives/edgar/data/1894714/000162829726000797/ex99_1.htm
BBCMS Mortgage Trust 2018-C2	Directing Certificateholder	LNR Securities Holdings, LLC		J-RR	23.4	https://www.sec.gov/Archives/edgar/data/1754913/000188852426017568/bcr18c02_ex991-202609.htm
BENCHMARK 2019-B15 MORTGAGE TRUST	Controlling Class Representative	Eightfold Real Estate Capital, L.P	Fees. Reports Available at sf.citidirect.com v. 21.09.28 Page	J-RR	–	https://www.sec.gov/Archives/edgar/data/1793651/000162829726000785/ex99_1.htm
Benchmark 2023-B38 Mortgage Trust	Directing Holder	Pacific Design Center ⚑ suspect	LNR Partners, Inc.	H	17.9	https://www.sec.gov/Archives/edgar/data/1966002/000188852426018249/bmk23b38_ex991-202609.htm
Benchmark 2020-B18 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital, L.P	LNR Partners,LLC	H-RR	29.0	https://www.sec.gov/Archives/edgar/data/1816147/000188852426018275/dma20b18_ex991-202609.htm
BMO 2024-C8 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR H, LLC	Rialto Capital Advisors, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2012263/000162829726000883/ex99_1.htm
Benchmark 2025-V14 Mortgage Trust	Directing Holder	400 Capital Management LLC	C-IV Asset Management LLC	J-RR	35.2	https://www.sec.gov/Archives/edgar/data/2056663/000188852426018233/bmk25v14_ex991-202609.htm
BMO 2022-C1 Mortgage Trust	Controlling Class Representative	Sabal Strategic Opportunities Fund, L.P	CWCapital Asset Management LLC	J	24.8	https://www.sec.gov/Archives/edgar/data/1903688/000188852426018331/bmo22c01_ex991-202609.htm
DBJPM 2020-C9 Mortgage Trust	Directing Holder	BSPRT 2020-C9 Owner, LLC	CWCapital Asset Management LLC	G	6.0	https://www.sec.gov/Archives/edgar/data/1818254/000188852426018303/dma20c09_ex991-202609.htm
Benchmark 2024-V11 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital Fund VI, L.P	LNR Partners, LLC	J-RR	39.1	https://www.sec.gov/Archives/edgar/data/2039535/000188852426018279/bmk24v11_ex991-202609.htm
Benchmark 2020-B22 Mortgage Trust	Directing Holder	RREF IV Debt AIV, LP, c/o Rialto Capital Management LLC	Rialto Capital Advisors, LLC	H	28.0	https://www.sec.gov/Archives/edgar/data/1833563/000188852426018293/dma20b22_ex991-202609.htm
Benchmark 2024-V10 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR H, LLC	Situs Holdings, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2034418/000162829726000799/ex99_1.htm
Benchmark 2025-V16 Mortgage Trust	Controlling Class Representative	V13 B-Piece Grand Avenue Partners, LLC	LNR Partners, LLC	G-RR	–	https://www.sec.gov/Archives/edgar/data/2060845/000162829726000803/ex99_1.htm
Benchmark 2024-V8 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital, L.P	LNR Partners, LLC	J-RR	44.2	https://www.sec.gov/Archives/edgar/data/2024274/000188852426018273/bmk24v08_ex991-202609.htm

TRUST	LABEL	DIRECTING HOLDER / CCR	SPECIAL SERVICER	CONTROLLING CLASS	CLASS BALANCE ($M)	SOURCE
BMO 2025-5C9 Mortgage Trust	Controlling Class Representative	3650 Real Estate Investment Trust 2 LLC	3650 REIT Loan Servicing LLC	J-RR	28.1	https://www.sec.gov/Archives/edgar/data/2048804/000188852426018367/bmo255c9_ex991-202609.htm
BMO 2025-C13 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR L, LLC	Rialto Capital Advisors, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2061838/000162829726000889/ex99_1.htm
BMO 2026-5C16 Mortgage Trust	Controlling Class Representative	3650 Real Estate Investment Trust 2 LLC	3650 REIT Loan Servicing LLC	J-RR	43.5	https://www.sec.gov/Archives/edgar/data/2136643/000188852426018391/bmo26c16_ex991-202609.htm
BMO 2026-C14 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR L, LLC	Rialto Capital Advisors, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2061932/000162829726000892/ex99_1.htm
BMO 2026-C15 Mortgage Trust	Controlling Class Representative	RREF V - D AIV RR L, LLC	Rialto Capital Advisors, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2063009/000162829726000894/ex99_1.htm
Benchmark 2022-B34 Mortgage Trust	Directing Holder	Eightfold Real Estate Capital Fund, L.P	LNR Partners, LLC	H	24.5	https://www.sec.gov/Archives/edgar/data/1912509/000188852426018223/bmk22b34_ex991-202609.htm
Benchmark 2025-V13 Mortgage Trust	Controlling Class Representative	V13 B-Piece Grand Avenue Partners, LLC	LNR Partners, LLC	J-RR	–	https://www.sec.gov/Archives/edgar/data/2049534/000162829726000801/ex99_1.htm
Benchmark 2025-V19 Mortgage Trust	Controlling Class Representative	Eightfold Real Estate Capital, L.P	Midland Loan Services, a Division of PNC Bank N.A.	G-RR	–	https://www.sec.gov/Archives/edgar/data/2093117/000162829726000805/ex99_1.htm
Benchmark 2026-B42 Mortgage Trust	Directing Holder	KREF Securities Holdings, LLC	K-Star Asset Management LLC	K-RR	7.1	https://www.sec.gov/Archives/edgar/data/2110410/000188852426018235/bmk26b42_ex991-202609.htm
Benchmark 2026-V20 Mortgage Trust	Directing Holder	RREF V – D AIV RR L, LLC	Rialto Capital Advisors, LLC	G-RR	36.9	https://www.sec.gov/Archives/edgar/data/2106400/000188852426018283/bmk26v20_ex991-202609.htm
Benchmark 2026-V22 Mortgage Trust	Controlling Class Representative	V13 B-Piece Grand Avenue Partners, LLC	LNR Partners, LLC	G-RR	–	https://www.sec.gov/Archives/edgar/data/2126766/000162829726000807/ex99_1.htm
Benchmark 2026-V23 Mortgage Trust	Directing Holder	ROX III CMBS HoldCo (C) Category 2B LP		L-RR	24.9	https://www.sec.gov/Archives/edgar/data/2148615/000188852426018255/bmk26v23_ex991-202609.htm

10 Verification ledger

ID	CLAIM	STATUS	SOURCE
CB 01	Noteholder Group holds >61.6% of 5.25% Secured Notes and >84.37% of 6.625% Senior Notes	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.320.0.pdf
CB 02	Excluding EchoStar's $123m insider position the Group holds 73.71% of the Secured Notes	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.320.0.pdf
CB 03	Third-party Secured Notes carrying $627.3m, fair value $536.8m (30 Jun 2026)	VERIFIED	https://www.sec.gov/Archives/edgar/data/1415404/000110465926089370/sats-20260630×10q.htm
CB 04	6.625% Senior Notes $750.0m, fair value $435.0m (30 Jun 2026)	VERIFIED	https://www.sec.gov/Archives/edgar/data/1415404/000110465926089370/sats-20260630×10q.htm
CB 05	Cash collateral: 'Required Prepetition Secured Parties' = majority in principal of Senior Secured Notes (EchoStar XXIV included but without vote) control waivers and remedies	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.561.0.pdf
CB 06	Amended Third Interim cash collateral order runs through 23 Oct 2026; final hearing set 20 Oct 2026	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.561.0.pdf
CB 07	Order recital (16 Oct 2026): no trustee or examiner has been appointed	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.561.0.pdf
CB 08	Examiner scope (16 Sep 2026): J3 lease, $529m + $500m 2024 dividends, ~$196m tax payments, SpaceX transaction, EchoStar's $123m note purchase and the $50m/$1m 2026 financings	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.339.0.pdf
CB 09	The $50m EchoStar XXIV financing was added as an additional secured obligation under the security agreement for the Secured Notes	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.339.0.pdf
CB 10	Examiner to report on equitable subordination and fiduciary-duty claims against EchoStar as controlling shareholder	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.339.0.pdf
CB 11	Stipulated stay (20 Sep 2026) of exclusivity litigation, investigations and any settlement of estate claims against EchoStar unless via mediation	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.369.0.pdf
CB 12	New non-ordinary-course EchoStar/Debtor transactions need prior written approval of the Committee and the Noteholder Group	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.369.0.pdf
CB 13	Group membership is listed on Exhibit A of the Rule 2019 Verified Statement, ECF No. 154	VERIFIED	https://storage.courtlistener.com/recap/gov.uscourts.txsb.498986/gov.uscourts.txsb.498986.369.0.pdf
CB 14	§1129(a)(10): an impaired accepting class is counted without insider acceptances	VERIFIED	https://www.law.cornell.edu/uscode/text/11/1129
CB 15	§510(c): court may equitably subordinate all or part of an allowed claim	VERIFIED	https://www.law.cornell.edu/uscode/text/11/510
CB 16	§363(k): a secured creditor may credit bid at a sale of its collateral unless the court for cause orders otherwise	VERIFIED	https://www.law.cornell.edu/uscode/text/11/363
CB 17	Rule 2019 'disclosable economic interest' includes derivatives and any economic interest affected by a claim's value	VERIFIED	https://www.law.cornell.edu/rules/frbp/rule_2019
CB 18	§1121(d): court may reduce or increase exclusivity for cause; 18-month outer limit	VERIFIED	https://www.law.cornell.edu/uscode/text/11/1121

ID	CLAIM	STATUS	SOURCE
CB 19	Fresno Fashion Fair: $60m note in JPMDB 2016-C4, 3.587%, maturity 1 Nov 2026	VERIFIED	https://www.sec.gov/Archives/edgar/data/1687202/000188852426017398/jpc16c04_ex991-202609.htm
CB 20	Fresno: special servicer finalising a Pre-Negotiation Letter with the borrower and sponsor Macerich	VERIFIED	https://www.sec.gov/Archives/edgar/data/1687202/000188852426017398/jpc16c04_ex991-202609.htm
CB 21	JPMDB 2016-C4 Directing Certificateholder (Sep 2026 10-D): Cytium Investment Management	VERIFIED	https://www.sec.gov/Archives/edgar/data/1687202/000188852426017398/jpc16c04_ex991-202609.htm
CB 22	At issuance BlackRock Realty Advisors (agent for a managed account) bought Classes E, F and NR and appointed the special servicer	VERIFIED	https://www.sec.gov/Archives/edgar/data/1013611/000153949716004038/n770_424b2-x10.htm
CB 23	Kronos EKS (BayWa) hybrid: vote without meeting 12–14 Oct 2026 was quorate but no resolution adopted	VERIFIED	https://www.baywa.com/binaries/pdf/content/documents/baywacms-en/downloadcenter/other-ir/kronos-publication-of-the-results-of-the-vote-without-meeting/kronos-publication-of-the-results-of-the-vote-without-meeting/baywacms%3Adownloadpdf/Kronos+EKS+AG+%26+Co.+KG+-+Vote+without+Meeting+-+Publication+of+Results+-+261016.pdf
CB 24	Branicks: shareholders' EGM (9 Oct) did not approve agenda item 4 consultancy agreements	VERIFIED	https://branicks.com/wp-content/uploads/2026/10/Update-on-Implementation-Conditions-EN-15-Oct-2026.pdf
CB 25	Branicks: holders of >50% of outstanding principal can instruct MR Treuhand to waive Implementation Conditions (other than 6 and 7)	VERIFIED	https://branicks.com/wp-content/uploads/2026/10/Update-on-Implementation-Conditions-EN-15-Oct-2026.pdf

11 Gaps (stated, not papered over)

- **Rule 2019 Exhibit A (ECF 154).** Group membership and member count are not on RECAP, and the Epiq page is JavaScript-only. **Numerosity analysis is therefore incomplete.** Dkt 93 is the examiner motion, not a 2019 statement, and returns 404 on RECAP. No amended 2019 statement was found on RECAP.
- **Trade claims.** The size of the trade pool and the trade cap were not retrieved (schedules and SOFAs not on RECAP).
- **Final cash-collateral order (20 Oct hearing) and the lien-challenge deadline.** Neither date was confirmed from a primary source.
- **Prices.** Fair values are issuer Level-2 estimates at 30 Jun 2026, not trades. TRACE prints were not used.
- **Loparex.** Recap terms beyond the press release are secondary-source only.
- **Branicks anchor holders.** Not named in primary text.
- **BayWa.** Actual participation and the vote split were not published.
- **CMBS.** 52 of 102 trusts print no directing holder in the 10-D. PSA designation notices would be needed.
- **PACER** was declined by the user. No account was created, and paywalled dockets were not accessed.

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